

TENTATIVE RULING(S) FOR July 14, 2026

Department S22 – Judge David Driscoll

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You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

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MARIO OLVERA MUNGUIA AND MARIA MOLINA V. REBECCA ANN HOYLES AND LINDA B. WALTON

TENTATIVE RULING

The matter first came before the Court for hearing on March 20, 2026. The Court continued the hearing to May 21, 2026, for service of the motion on Defendants. There also was an issue with Plaintiff Molina's declaration not being signed under penalty of perjury.

On March 20, 2026, Molina filed an amended declaration, signed under penalty of perjury. Molina's declaration is similar to Munguia's declaration in that she provides sufficient evidence to find extrinsic mistake related to attorney abandonment.

With respect to the May 21, 2026 hearing, the POS filed on March 25, 2026 was signed by Mario Olvera Munguia, but the POS form specifically states the person who served the papers "is not a party to this action." (See also Code Civ. Proc., § 1013a, subd. (a)(1).) As a result, the Court continued the motion to give Plaintiffs one more opportunity to properly serve the motion papers, along with a notice of the continued hearing date.

On June 10, 2026, Plaintiffs filed a proof of service of the motion, that is signed by a person not a party to the case. The Court having POS of the motion, and Plaintiff Molina's amended declaration signed under penalty of perjury, will proceed to rule on the merits.

On October 2, 2020, Plaintiffs Mario Olvera Munguia and Maria Molina filed a judicial form complaint against Defendants Rebecca Hoyles and Linda B. Walton. Plaintiffs allege causes of action for general negligence. Their complaint arises out of an accident on December 1, 2019, in which they allege Defendant Hoyles' vehicle collided with their vehicle.

On November 4, 2021, Defendants' default was entered.

On December 15, 2021, the Court set an OSC re Dismissal/Failure to Prosecute for May 3, 2022, after no one appeared. On May 3, 2022, the Court dismissed the case after no one appeared. No substitution of counsel has been filed.

Now before the Court is Plaintiffs' motion for equitable relief to vacate the dismissal. Plaintiffs also state they bring their motion under Code of Civil Procedure sections 473 and 583.420, on the grounds that the dismissal resulted from extrinsic mistake and attorney abandonment, including the death of an attorney in the firm of record during the COVID-19 pandemic, coupled with the law firm's misleading representations that a default judgment had been obtained when none had been entered. Plaintiffs claim they are diligent non-English speakers who entirely relied on counsel and had no reason to question representations made to them.

Plaintiffs' attorney of record displayed on the Complaint is Edward A. Esqueda, Esq. (SBN 146057), Law Offices of Edward A. Esqueda, in Montebello. No substitution has been filed.

Plaintiff Munguia submits a declaration in which he states that on December 1, 2019, he was driving a vehicle with Plaintiff Molina as a passenger when struck by Defendants' vehicle. He suffered significant physical injuries. Plaintiffs retained the Law Offices of Edward A. Esqueda and trusted them fully to handle all matters, including the November 4, 2021 default request. The firm assured them that a default judgment was entered and the case resolved. After an attorney's death in the firm during COVID, the firm still claimed there were no issues and Plaintiffs believed them based on years of updates. In mid-October, upon retrieving the file amid insults from the firm, with advocate assistance, they learned of the dismissal and lack of an entry of a judgment. Plaintiffs promptly filed the motion. (Munguia Decl. ¶¶ 2-5.)

Checking the State Bar website, Edward Anthony Esqueda (SBN 146057) is still practicing, and he is not the lawyer who passed away, so the relevancy of a lawyer's death in the firm during COVID is unclear. On its own motion, the Court takes judicial notice of Edward A. Esqueda's license status. (Evid. Code, § 452, subd. (h).)

Plaintiff Molina's amended declaration states that she was a passenger in a vehicle struck by a vehicle owned by Walton and driven by Hoyles. She and Munguia retained the Law Offices of Edward A. Esqueda and paid a retainer. Throughout 2020 and 2021, the firm informed them that the case was filed and service was complete. In November 2021, the firm told them a default had been entered and a judgment was forthcoming. Plaintiffs continued to check in periodically. (Molina Am. Decl. ¶¶ 2-4.)

During the COVID-19 pandemic, Plaintiffs learned an attorney in the firm had passed away, but were assured it would not affect their case. The firm repeatedly stated that "everything is going fine" and that they won by default. Plaintiffs had no reason to doubt them and did not independently check court records. (Molina Am. Decl. ¶ 5.)

In recent months, with no settlement or further news, they grew concerned. In mid-October 2025, they went to retrieve their file and were insulted and told to "shower and return." With help from an advocate, they obtained the file. When they reviewed the file, they discovered a default judgment did not exist and the case was dismissed on May 3, 2022, which Plaintiffs were never told. (Molina Am. Decl. ¶¶ 6-7.)

Analysis

The outside limits for seeking relief under Code of Civil Procedure section 473, subdivision (b), is six months. This limit is jurisdictional in the sense that the court has no power to grant relief under the discretionary provision of subdivision (b) after this time regardless of how reasonable the excuse for the delay. (*Aldrich v. San Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 735, fn.3. (*Aldrich*).) Here, the case was dismissed on May 3, 2022. Therefore, any relief must be premised upon the Court's inherent equity power based on extrinsic fraud or extrinsic mistake.

Plaintiffs' motion also requests equitable relief based on extrinsic mistake as a result of attorney abandonment. "Mistake has been defined as "... the doing of an act under an erroneous conviction, which act, but for such conviction, would not have been done. The same reasoning logically applies to a failure to act, -- an omission."'" (*Aldrich, supra*, 170 Cal.App.3d at p. 738, citation omitted.)

For example, in *Aldrich*, the plaintiff filed a personal injury complaint and the defendants answered. The case was dismissed after discovery orders directed to plaintiff were not met. The clerk served notice of the filing of the order of dismissal on all parties, addressed to the attorneys of record. The notice to plaintiff's counsel was returned by the U.S. Post Office as undeliverable. Counsel for the defendant also sent a notice of ruling. Approximately three years later, the plaintiff, who had retained new counsel, moved to set aside the dismissal with evidence that the former attorney had been suspended from the practice of law approximately one month before the hearing on the motion to dismiss. The client had no knowledge of his former attorney's suspension and attempts to contact him at that time were futile. (*Id.* at pp. 730-732.)

The trial court vacated the judgment of dismissal and the appellate court affirmed. The Court held that the plaintiff had been effectively abandoned by the positive misconduct of his attorney before the order of dismissal was made and filed, and in the absence of any prejudice, the client's showing of diligence was sufficient to set aside the dismissal. (*Id.* at pp. 735-741.)

Positive misconduct will be found where there is a total failure on the part of counsel to represent the client. (*Id.* at p. 739.) In effect, this results in a de facto severance of the attorney-client relationship.

But even where the lawyer's conduct amounts to abandonment, the Court must consider other equitable factors. (*Seacall Develop., Ltd. v. Santa Monica Rent Control Bd.* (1999) 73 Cal.App.4th 201, 205.) Factors to be considered include: (1) the client's own conduct and diligence in pursuing the case; (2) prejudice to defendant; (3) policy favoring trial on the merits; (4) policy favoring finality of judgments; (5) policy disfavoring unreasonable delays in litigation; (6) policy that innocent clients should not have to suffer from their attorney's gross negligence; and (7) policy that grossly incompetent attorneys should not be relieved from the consequences of their incompetence. (*Id.* at p. 205.)

Here, the failure to appear at hearings and the resulting dismissal were the result of attorney abandonment and Plaintiffs should be granted relief from the dismissal. First, Plaintiffs demonstrate that they continued to follow up with counsel and were reassured a judgment had been entered. "The law permits a client to 'sit back in peace and confidence' and does not expect him to know of discretionary dismissal deadlines." (*Fleming v. Gallegos* (1994) 23 Cal.App.4th 68, 73, citations omitted.) At issue are Defendants whose defaults have been entered, so prejudice is not demonstrated. The dismissal here was discretionary, not mandatory. The policy that an innocent client should not suffer from its attorney's gross negligence should be considered and applied here.

Finally, with respect to the Court's equitable authority and granting relief from the dismissal based on extrinsic mistake (here based on attorney abandonment), three elements must be met: (1) the defaulted party must show that it has a meritorious case; (2) second, it must articulate a satisfactory excuse; and (3) it must demonstrate it was diligent in seeking to set aside the default once discovered. (*Aldrich, supra*, 170 Cal.App.3d at p. 738.)

Here, Plaintiffs have a meritorious case in that a default has already been entered. The dismissal was the result of Plaintiffs' apparent trust in their attorney of record who effectively abandoned them. Finally, Plaintiffs promptly sought to set aside the dismissal once discovered.

RULING

Accordingly, the court grants the Plaintiffs' motion to vacate the dismissal pursuant to the Court's inherent equity power to vacate a judgment due to extrinsic mistake comprised of the misconduct of Plaintiffs' counsel of record tantamount to attorney abandonment. This case is restored to Civil Active matters.